

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 25-009

**Amendments to Title 6, Chapter 3 Section 6-304.9 of the Chickasaw Nation Code
(Placement Preferences)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted placement preferences for use of the Chickasaw courts in the determination of placement of a child for foster care or adoption, and

WHEREAS, the Tribal Legislature desires to amend the placement preferences.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6, Chapter 3 Section 6-304.9 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 6-304.9 PLACEMENT PREFERENCES.

A. In making a placement of or Committing legal Custody of a Child to some person in the dispositional process whether for foster care or adoption, the Court shall place the Child in the following descending order of preference:

1. the natural Parents, adoptive Parents, or Stepparents as the case may be;
2. a citizen of the Chickasaw Nation over eighteen (18) years of age who is the Child's Grandparent, Aunt or Uncle, Brother or Sister, Brother-in-law or Sister-in-law, Niece or Nephew, first or second Cousin, and their spouse;
- ~~103.~~ any other citizen of the Chickasaw Nation and their spouse; or
- ~~54.~~ a Traditional Custodian who is a citizen of the Chickasaw Nation and their spouse;
- ~~65.~~ a Traditional Custodian who is a member of another Indian tribe and their spouse;

36. a member of another Indian tribe over eighteen (18) years of age who is the Child's Grandparent, Aunt or Uncle, Brother or Sister, Brother-in-law or Sister-in-law, Niece or Nephew, first or second Cousin, and their spouse;

47. any other person over eighteen (18) years of age who is the Child's Grandparent, Aunt or Uncle, Brother or Sister, Brother-in-law or Sister-in-law, Niece or Nephew, first or second Cousin, and their spouse;

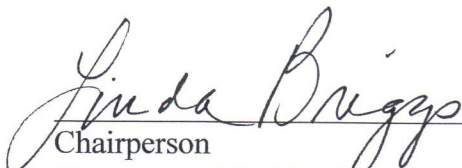
118. any other Indian person and their spouse;

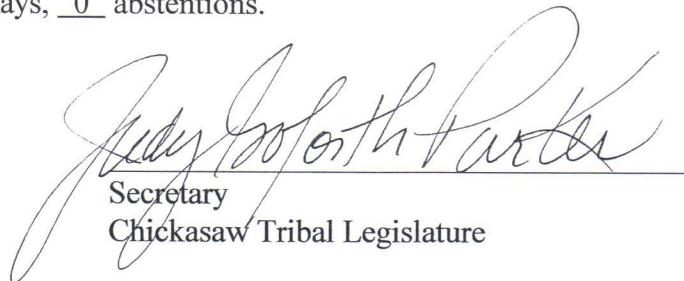
89. a Foster Home licensed by the Department;

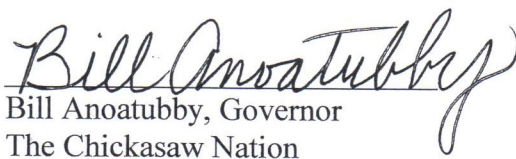
740. an Indian Foster Home licensed by any other licensing authority within the state or an Indian Foster Home licensed by some other tribe; or

944. an institution for Children licensed or approved by the Department with a program suitable to meet the Child's needs;:-"

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on July 18, 2008, by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUL 19 2008

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 25-009

Amendments to Title 6, Chapter 3 Section 6-304.9 of the Chickasaw Nation Code (Placement Preferences)

Explanation: This resolution amends the list of preferences to be used by the Chickasaw Nation courts in the determination of placement of a child for foster care or adoption. The amendments would make the list of preferences to be the following:

- “1. the natural Parents, adoptive Parents, or Stepparents as the case may be;
2. a citizen of the Chickasaw Nation over eighteen (18) years of age who is the Child's Grandparent, Aunt or Uncle, Brother or Sister, Brother-in-law or Sister-in-law, Niece or Nephew, first or second Cousin, and their spouse;
3. a member of another Indian tribe over eighteen (18) years of age who is the Child's Grandparent, Aunt or Uncle, Brother or Sister, Brother-in-law or Sister-in-law, Niece or Nephew, first or second Cousin, and their spouse;
4. any other person over eighteen (18) years of age who is the Child's Grandparent, Aunt or Uncle, Brother or Sister, Brother-in-law or Sister-in-law, Niece or Nephew, first or second Cousin, and their spouse;
5. a Traditional Custodian who is a citizen of the Chickasaw Nation and their spouse;
6. a Traditional Custodian who is a member of another Indian tribe and their spouse;
7. an Indian Foster Home licensed by any other licensing authority within the state or an Indian Foster Home licensed by some other tribe;
8. a Foster Home licensed by the Department;
9. an institution for Children licensed or approved by the Department with a program suitable to meet the Child's needs.
10. any other citizen of the Chickasaw Nation and their spouse; or
11. any other Indian person and their spouse.”

Presented By: Court Development Ad Hoc Committee
Tim Colbert, Committee Chair